

Momentum Digital

Custom software, digital growth, and ownership-first development



CUSTOM SOFTWARE AGREEMENT

VA Claims - Custom Software Development & Ownership Agreement

A five-month, phase-based development agreement covering software buildout, prepayment billing, client ownership, maintenance support, confidentiality, and signatures.

Client	VA Claims
Agency	Momentum Digital
Agreement	Custom Software Development & Ownership Agreement
Total Investment	\$15,000 across 5 phases
Phase Billing	\$3,000 prepaid per phase; next phases begin after prior approval and next prepayment
Maintenance Retainer	\$350/month fixed for 24 months once maintenance support begins
Proposal Date	May 2026

The overall contract starts after the agreement is signed and the onboarding call is complete. Phase work is prepaid by billing cycle, and each next phase begins only after the prior phase is approved and the next phase prepayment is completed.

Agreement Summary

Momentum Digital will provide custom software development services for VA Claims through a structured five-month project. The agreement is designed around clear phase approvals, prepaid billing cycles, full client ownership, ongoing maintenance support, and mutual protective terms.

The total project investment is \$15,000, split into five phase billing cycles of \$3,000. Each phase payment is a prepayment for that phase of work. Next phases do not begin until the previous phase has been reviewed and approved by the client and the next phase prepayment has been completed.

\$15,000

Total project investment

\$3,000

Prepaid per phase

\$350/mo

Maintenance retainer fixed for 24 months

Key Updated Terms

This updated version includes the 24-month maintenance retainer clause, phase prepayment timing, non-cancellation language, mutual NDA/non-compete section, and a final signature/date block.

- The overall contract starts after both parties sign the agreement and the onboarding call is complete.
- The initial custom software development contract cannot be canceled after it begins, except by mutual written agreement or as otherwise required by law.
- Each billing cycle is a prepayment for the applicable phase of work.
- Next phases do not begin until the previous phase is approved and the next phase prepayment is completed.
- The \$350/month maintenance retainer is fixed for 24 months and starts only when the final phase is complete and monthly maintenance and support actually begin.
- The maintenance retainer may be canceled anytime with 60 days written notice.
- Both parties agree to mutual NDA, confidentiality, non-compete, non-solicitation, and non-circumvention protections where legally permissible and appropriate.

Contract Start, Investment & Phase Billing

The overall contract starts after this agreement is signed by both parties and the onboarding call is complete. Once the agreement has started, Momentum Digital will begin the project according to the phase-based structure outlined below.

The total project investment is \$15,000, structured across five monthly phase billing cycles of \$3,000 each. Each billing cycle is a prepayment for the applicable phase of work.

Phase 1 begins after the agreement is signed, the onboarding call is complete, and the Phase 1 prepayment has been received. Phases 2 through 5 do not begin until the previous phase has been reviewed and approved by the client and the next phase prepayment has been received.

Phase	Focus	Billing & Start Requirement
Phase 1	Discovery, strategy, technical planning, workflows, and roadmap	\$3,000 prepayment due after signing and onboarding call completion before Phase 1 begins
Phase 2	Software environment, tools, access, framework, and core setup	\$3,000 prepayment due after Phase 1 approval before Phase 2 begins
Phase 3	Core development, feature buildout, integrations, and user workflows	\$3,000 prepayment due after Phase 2 approval before Phase 3 begins
Phase 4	Testing, bug fixes, revisions, performance, and usability improvements	\$3,000 prepayment due after Phase 3 approval before Phase 4 begins
Phase 5	Final delivery, client handoff, access confirmation, and launch support	\$3,000 prepayment due after Phase 4 approval before Phase 5 begins

Phase Approval & Non-Cancellation

- Each phase will be presented to the client for review and approval before moving into the next phase.
- Reasonable revisions within the agreed phase scope may be addressed before phase approval.
- The next phase does not begin until the prior phase is approved and the next phase prepayment is completed.
- The initial custom software development contract cannot be canceled after the contract begins, except by mutual written agreement, uncured material breach, or another legally required basis.

Five-Month Development Phases

The project will be organized into five clear phases so both parties can track progress, approvals, payments, and handoff expectations.

Phase 1: Discovery, Strategy & Technical Planning

\$3,000 prepayment before Phase 1 begins.

- Project discovery and planning
- Review of core software requirements
- Workflow and feature planning
- Technical architecture recommendations
- Tool, environment, and software planning
- Development roadmap creation

Phase 2: Software Environment, Tools & Core Setup

\$3,000 prepayment before Phase 2 begins, after Phase 1 approval.

- Development environment setup
- Software framework setup
- User access and permissions planning
- Database or backend structure setup
- Tool and platform configuration
- Secure access setup where applicable

Phase 3: Core Development & Feature Buildout

\$3,000 prepayment before Phase 3 begins, after Phase 2 approval.

- Core feature development
- Frontend and backend development
- Software logic and functionality
- User dashboard or admin tools
- Data handling and integrations
- Internal testing during development
- Payment Watch tracking - monitors clients 60-120 days and 121+ days post C&P exam, with manual timer initiation, two-group dashboard view, and paid status management.

Five-Month Development Phases Continued

Phase 4: Testing, Revisions & Optimization

\$3,000 prepayment before Phase 4 begins, after Phase 3 approval.

- Quality assurance testing
- Bug testing and troubleshooting
- Functionality improvements
- Client-requested revisions within the agreed scope
- User experience improvements
- Final pre-launch development updates

Phase 5: Final Delivery, Handoff & Launch Support

\$3,000 prepayment before Phase 5 begins, after Phase 4 approval.

- Final software review
- Final edits and cleanup
- Client access confirmation
- Code and environment handoff
- Documentation and training support
- Launch or deployment assistance
- Final project approval

Scope Management

Any additional features, integrations, or major functionality changes outside the agreed scope may be estimated separately before development begins. Momentum Digital will communicate changes clearly before performing out-of-scope work.

The Payment Watch feature described in client correspondence dated May 2026 is included within the Phase 3 scope at no additional cost.

This structure protects both parties by keeping the project moving in clearly defined phases while giving the client formal review and approval checkpoints.

Client Ownership, Access & Rights

Upon payment for the approved project phases, the client will have full accessibility, ownership, and rights to the completed software project, including the code, tools, software environment, and related project assets developed specifically for the client.

Momentum Digital will provide the client with appropriate access to the project environment, including relevant code repositories, software tools, hosting environment, admin accounts, documentation, and related systems used to develop and manage the project.

The client will have the right to use, manage, modify, expand, and continue developing the software after completion. Momentum Digital will not intentionally restrict the client from accessing, owning, or transferring the project, provided all approved phase payments have been completed.

Client receives access to:	Ownership / rights clarification:
Code repositories, project files, software environment, documentation, admin tools, access credentials, and relevant management systems.	The client has full accessibility, ownership, and rights to the completed project and software once approved phase payments have been completed.
Third-party tools, plugins, APIs, hosting platforms, licenses, subscriptions, or software services used in the project.	These may remain subject to the terms, pricing, licensing, and ownership rules of those third-party providers.

Software Confidentiality & Non-Resale

Momentum Digital agrees that this software project is being developed specifically for the client. Momentum Digital will not share, sell, license, resell, publicly distribute, or commercially reproduce the client's custom software product for another business or third party.

Momentum Digital may retain general knowledge, development experience, reusable internal processes, and non-confidential technical skills learned during the project, but Momentum Digital will not resell the client's proprietary software, confidential workflows, private business logic, or custom project assets.

Maintenance Retainer Terms

After the initial five-month development project is completed, Momentum Digital will provide ongoing software maintenance and support at a monthly maintenance fee of \$350/month.

The monthly maintenance fee will remain fixed at \$350/month for two years (24 months). The two-year maintenance retainer period begins only when the final phase is complete and monthly maintenance and support actually begin. The 24-month period does not begin when this agreement is signed.

Term	Maintenance Retainer Clause
Monthly fee	\$350/month for ongoing software maintenance and support.
Rate protection	The \$350/month fee remains fixed for 24 months once maintenance and support begin.
Start date	The two-year maintenance period begins after the final phase is complete and monthly maintenance and support actually begin, not on the contract signing date.
Included time	Approximately 7 hours per month, billed at \$50/hour, for updates, bugs, minor features, support, communication, and software-related assistance.
Cancellation	The maintenance retainer may be canceled anytime with 60 days written notice. The initial development contract remains non-cancellable after it begins, except by mutual written agreement, uncured material breach, or another legally required basis.
Additional work	Any work beyond the included monthly maintenance hours may be discussed, approved, and billed separately at the agreed hourly rate.

Maintenance Support May Include

- Software updates
- Bug fixes
- Minor feature improvements
- Technical support
- Development support
- Client communication
- Troubleshooting
- Small revisions or adjustments
- Monthly software check-ins

Communication, Mutual NDA & Non-Compete

Momentum Digital will provide consistent communication throughout the project to keep the client informed and involved.

- Weekly project updates
- Monthly client calls
- Ad hoc development update meetings as needed
- Phase review meetings
- Progress updates before phase approval
- Communication regarding revisions, bugs, features, and next steps

Mutual NDA, Confidentiality & Non-Compete Protections

Both parties agree to share and execute a mutual NDA and confidentiality agreement to protect private business information, software details, proprietary processes, technical documentation, client data, development strategy, and any sensitive materials exchanged during the project.

Both parties also agree to mutual non-compete, non-solicitation, and non-circumvention protections where legally permissible and appropriate. These protections are intended to prevent either party from using confidential information, proprietary software, project strategy, client data, or private business relationships from this project to unfairly compete with or harm the other party.

The final NDA, non-compete, non-solicitation, and non-circumvention terms should be reviewed and approved by both parties and their legal counsel before signing where appropriate.

Purpose of mutual protections
Momentum Digital does not share, resell, or repurpose the client's custom software.
The client's confidential business information and software concept remain protected.
Both parties respect each other's proprietary information, relationships, tools, processes, and business interests.
Neither party uses confidential information from this project to unfairly compete with or harm the other party.

Note: This document is intended as business proposal and agreement language. Final NDA, non-compete, non-solicitation, non-circumvention, cancellation, and legal terms should be reviewed by qualified counsel before signing.

Approval & Acceptance

By signing below, both parties acknowledge the proposed scope, phase structure, prepaid billing terms, non-cancellation terms, ownership terms, 24-month maintenance retainer terms, communication expectations, and mutual confidentiality protections outlined in this agreement.

This agreement begins after both parties sign the contract and the onboarding call is complete.

Client Signature

Momentum Digital Signature

Name / Title

Name / Title

Date

Date

Final Agreement Reminder

The development agreement is non-cancellable once started, while the maintenance retainer may be canceled anytime with 60 days written notice. The \$350/month maintenance retainer is fixed for 24 months beginning when monthly maintenance and support actually begin after final phase completion.